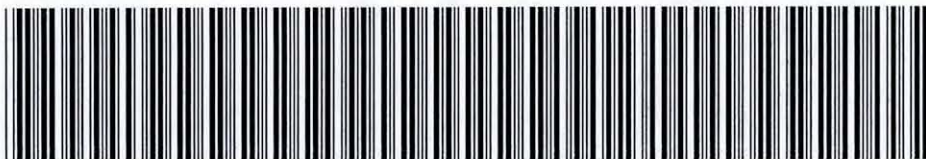


EWR D&I ANNOTATION



FAN-000001L044002DP655-7069

Artemis # : 000001L044002DP655**Record Created Date :****Printed Date :** 08/22/2005

Description : SINGLE VEHICLE INCIDENT INVOLVING UNBELTED OCCUPANTS AND A FIXED OBJECT (TREE). ACCORDING TO POLICE REPORT, THE DRIVER WAS INTOXICATED BY ILLEGAL DRUGS AND WAS DRIVING AT AN UNSAFE SPEED. EDR DATA DOES NOT SUGGEST AN AIR BAG DEPLOYMENT WAS REQUIRED.



U.S. Department
of Transportation

**National Highway
Traffic Safety
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

JUN 23 2005

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Ms. Gay P. Kent, Director
General Motor Corp.
Mail Code 480-111-E18
30200 Mound Road
Warren, MI 48090

NVS-217ph
DI05-063

Dear Ms. Kent,

This letter requests additional information regarding certain death incidents reported by General Motors in its light vehicle early warning report for the 4th quarter of 2004. The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) is requesting information on the following incidents:

Selected Death Incidents from the 4th Quarter of 2004	
For Reporting Category: L	
For the following Sequence IDs (SeqID): 10, 33, 49, 149, 185, 187, 270, 346, 348, 420, 472, 483, 512, 552, 557, 618, 654, 655	

Please provide numbered responses to the following requests, repeating the applicable request verbatim before each response. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: General Motor Corporation.



DOT AUTO SAFETY HOTLINE
888-DASH-2-DOT
888-327-4236

Vehicle: the vehicle produced by General Motor Corporation that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever, be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color. Furnish all documents whether verified by General Motor Corporation or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in General Motor Corporation's custody and/or control.

Please repeat the applicable request verbatim above each response. After General Motor Corporation's response to each request, identify the source of the information and indicate the last date the information was gathered.

1. Provide a complete and full copy of the claim or notice document that notified General Motor Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of all documents concerning the alleged defect, or alleged consequences of the alleged defect, that refer to the incident excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.
3. Provide a copy of all investigative documents, including but not limited to photographs, Police Accident Reports, cause and origin reports, forensic or other reports related to each incident.
4. Provide General Motor Corporation's assessment of the circumstances that led to the incident including General Motor Corporation's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to General Motor Corporation pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. General Motor Corporation's failure to respond promptly and fully to this letter could subject General Motor Corporation to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Please note that maximum civil penalties under 49 U.S.C. § 30165 have increased as a result of the recent enactment of the Transportation Recall Enhancement, Accountability, and Documentation (TREAD) Act, Public Law No. 106-414 (signed November 1, 2000). Section 5(a) of the TREAD Act,

codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. *See* 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If General Motor Corporation claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b)(4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, General Motor Corporation must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **August 11, 2005**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement, NHTSA



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

RECEIVED
NVS-215

August 11, 2005

2005 AUG 12 A 9:22

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement, NHTSA
400 Seventh Street, S.W.
Washington, DC 20590

OFFICE OF
DEFECTS INVESTIGATION

GMRC016

NVS-217ph
DI05-063

Dear Ms. Morgan:

This letter is General Motors' (GM) response to your inquiry dated July 23, 2005, regarding certain death incidents reported by GM in its light vehicle early warning report for the 4th quarter of 2004.

GM's response is comprised of 19 CDs, one or more for each incident that is the subject of DI05-063, with the exception of Sequence ID 483, which will be provided under separate cover.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 512 107175398 - 486309 2000 GMC Sierra 1500. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 512 107175398 - 486309_00 Request and Responses.tif. The index is numbered one through four to correspond to Inquiries no. 1 through 4 of the inquiry, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Request and Responses in the index for one of the CDs are as follows:

DI05-063
512 107175398 - 486309
2000 GMC SIERRA 1500

Request for Information:

1. Provide a complete and full copy of the claim or notice document that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Documents

2. Provide a copy of all documents concerning the alleged defect, or alleged consequences of the alleged defect, that refer to the incident excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.

Response: None.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

- 512 107175398 - 486309_01_001 - is the first document responsive to Inquiry no. 1.
512 107175398 - 486309_03_001 - is the first document responsive to Inquiry no. 3.
512 107175398 - 486309_03_002 - is the second document responsive to Inquiry no. 3.

Product Investigations

Mail Code: 480-111-E18 • 30200 Mound Road • Warren, MI 48090-9010
GMRC016 DI05-063 Response



Your inquiries and our corresponding replies are as follows:

1. Provide a complete and full copy of the claim or notice document that notified General Motors Corporation of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

The table below lists the incidents that are the subject of DI05-063, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. § 579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit, Claim, Product Allegation Resolution (PAR) or Rumor. Lawsuit and Claim case types generally meet the § 579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table may not be a claim or notice of the type generally defined as such by § 579.4(c).

SELECTED DEATH INCIDENTS FROM THE 4TH QUARTER OF 2004		
REPORTING CATEGORY L		
(18 VEHICLES FROM TEMPLATE)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
10	1G4HP54K51U [REDACTED]	LAWSUIT
33	3G5DA03E44S [REDACTED]	CLAIM
49	1G6DM577540 [REDACTED]	PAR
149	1G1JF524027 [REDACTED]	RUMOR
185	2G1WH52K649 [REDACTED]	PAR
187	2G1WF52E249 [REDACTED]	RUMOR
270	1GNCS13W42K [REDACTED]	LAWSUIT
346	2GCEC19T33 [REDACTED]	PAR
348	1GCEK19T24E [REDACTED]	LAWSUIT
420	1GNEK13Z94R [REDACTED]	RUMOR
472	1GNDX03E14D [REDACTED]	LAWSUIT
483	Will Be Provided Under Separate Cover	
512	1GTEC14V6YZ [REDACTED]	CLAIM
552	1GKFK66U02J [REDACTED]	LAWSUIT
557	5GRGN23UX4H [REDACTED]	RUMOR
618	2G2WP522541 [REDACTED]	PAR
654	1G8AL52F53Z [REDACTED]	PAR
655	1G8AJ52F14Z [REDACTED]	CLAIM

2. Provide a copy of all documents concerning the alleged defect, or alleged consequences of the alleged defect, that refer to the incident excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property

damage invoices and estimates; and (c) documents related to quantification of damages.

See attached document.

- 3. Provide a copy of all investigative documents, including but not limited to photographs, Police Accident Reports, cause and origin reports, forensic or other reports related to each incident.**

See attached documents and photographs.

- 4. Provide General Motors Corporation's assessment of the circumstances that led to the incident including General Motors Corporation's analysis of the claim and/or notice regarding allegations of a defect.**

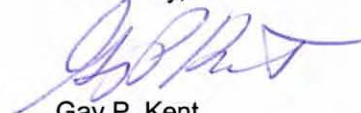
To date, GM's investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of other incidents (from lawsuits and claims) may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

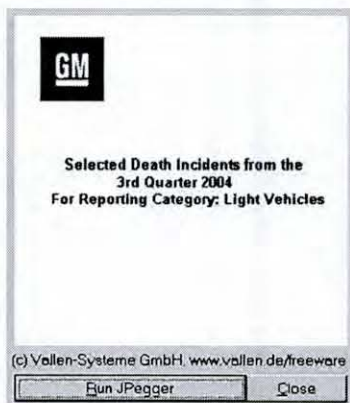


Gay P. Kent
Director
Product Investigations

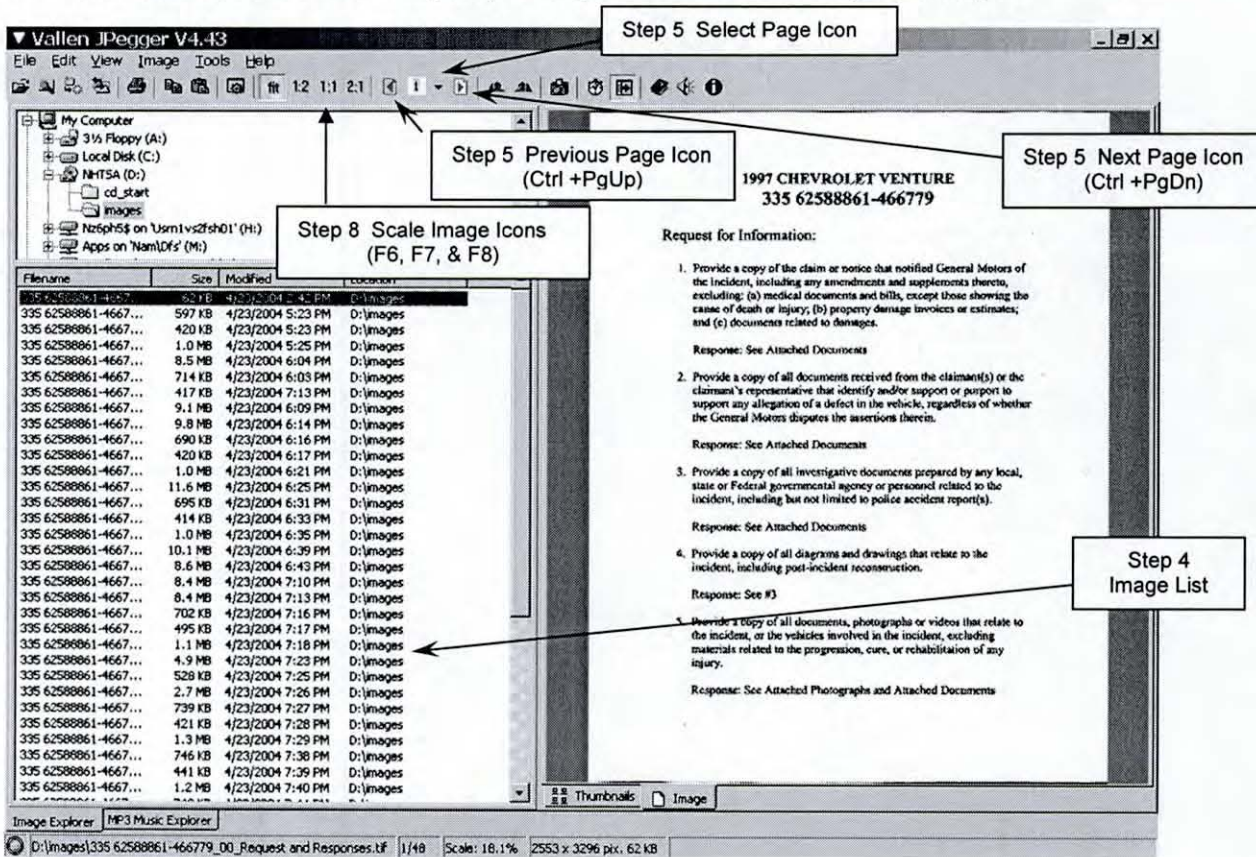
Enclosures:
19 CDs
Attachment A

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



Product Investigations

Mail Code: 480-111-E18 • 30200 Mound Road • Warren, MI 48090-9010
GMRC016 DI05-063 Response



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5, F6, F7, and F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

CIVIL CASE COVER SHEET

1. Check one box below for the case type that best describes this case:

☒ Auto Tort
☐ Other Tort (22)
☐ Personal Injury/Property Damage/Wrongful Death/Tort
☐ Asbestos (24)
☐ Product Liability (24)
☐ Medical malpractice (44)
☐ Other PIP/DIWD (22)
☐ Non-PIP/DIWD (other) Tort
☐ Business tort/better business practice (27)
☐ Civil rights (e.g., discrimination, false arrest) (28)
☐ Detention (e.g., slander, libel) (13)
☐ Famed (14)
☐ Intellectual property (16)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DIWD tort (22)
☐ Employment
☐ Wrongful termination (30)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management.

a. ☒ Large number of separately represented parties
 b. ☒ Extensive reaction practice raising difficult or novel issues that will be time-consuming to resolve
 c. ☒ Substantial amount of documentary evidence
 d. ☐ Large number of parties
 e. ☐ Coordination in other counties
 f. ☐ Substantial cost

3. Type of remedies sought (check all that apply):
 a. ☒ monetary b. ☐ nonmonetary, declaratory or injunctive relief

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836

NOTICE
 Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (see under the Probate, Family, or Welfare and Institutions Code), (Cal. Rules of Court, rule 1800).
 If this case is complex under rule 1800 of the California Rules of Court, you must either perfect to the action or proceeding.
 Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

CIVIL CASE COVER SHEET

Step 7 Next File (Image) points to 'Next Image'
 Step 7 Next page points to 'Next page'
 Step 8 Scale Image points to '1:1 Scale 100%'
 Step 7 Image Properties points to 'EXIF Image Information...'

DI05-063
655 107176510 – 489548
2004 SATURN ION

Request for Information:

1. Provide a complete and full copy of the claim or notice document that notified General Motors of the incident, including any amendments and supplements thereto, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Documents

2. Provide a copy of all documents concerning the alleged defect, or alleged consequences of the alleged defect, that refer to the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices and estimates; and (c) documents related to quantification of damages.

Response: See Attached Document

3. Provide a copy of all investigative documents, including but not limited to photographs, Police Accident reports, cause and origin reports, forensic or other reports related to each incident.

Response: See Attached Documents

4. Provide General Motors Corporation's assessment of the circumstances that led to the incident including General Motors Corporation's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, GM's investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of other incidents (from lawsuits and claims) may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

was a letter it received from Van
See ABIO, Page 4A

city council in the March 2003
the proposed district, 19 were in
favor, 6 opp 1 and one unde-

ing inspector Rick Malone said.
"If the building is a non-

how it looks now, but more for
See ORDINANCE, Page 4A

One Killed In Head-On

By Julie Vaughan
Editor

A 25-year-old Canton man was killed, and a woman was seriously injured, in a head-on collision Monday morning after their vehicle struck a tree on Van Zandt County Road 4106.

Department of Public Safety Trooper Pete Asplund said [redacted] died from "head trauma" injuries received in the accident as a passenger in the right front of the 2004 Saturn.

The driver, [redacted] 21, Canton, was transported to Trinity Mother Frances Hospital in Tyler by Champion EMS.

"She ran off the road to the left (west), never applied the brakes and skidded along the brush line

and hit a tree head on," Asplund said.

He went on to explain that the impact of the hit caused the car to stand up vertical with the rear of the vehicle in the air before it fell to the left on the driver's side.

Asplund said neither [redacted] nor [redacted] were wearing a seat belt, and [redacted] injuries involve head trauma and a broken femur.

Speed and other contributing factors were unknown as the accident is still being investigated. An update on [redacted] condition was unknown as of press time.

Asplund was assisted by troopers Kaleb Bullock, Nisha Thompson, sergeant Jeff Wimberly and the Canton Volunteer Fire Department.

Hearings Scheduled For Former Officers

By Debbie French
Staff Writer

Hearings for one current and two former Canton Police Department employees have been scheduled for Monday's Canton City Council meeting at 6 p.m.

City secretary and finance officer Julie Jackson confirmed grievance hearings for former school resource officer Michel Abio and former records clerk/dispatcher Denise Proctor are scheduled. A hearing is also scheduled for Charlie Brown, who was formerly a sergeant and investigator before a department reorganization demoted him to

senior day patrol officer.

Dallas attorney William B. Dunleavy will represent Brown and Proctor. Dunleavy represented former police chief David Hammonds, former lieutenant Ron York and patrol officer Steve Thompson at city council hearings last month.

At those hearings, the council affirmed administration decisions regarding the employees' positions, although it did reinstate Thompson's salary to what it was before the reorganization and agreed to pay York a \$525 shortage in his retirement benefit.

See HEARING, Page 4A

Early Holiday Deadlines, Closing Set For Herald

In observance of the Thanksgiving holiday the Canton

is 3 p.m. on Friday, November 19.

Photo by Debbie French

ith pride!" was the resounding call by the band to drum majors Josh head at a parade Monday honoring the band for its numerous its second University Interscholastic League state marching champion

Turn Out To Honor Band

League state marching championship.

After students rode around the square in floats, escorted by the Canton police and fire departments, they were addressed by high school principal Max Callahan. Several school board

members were present as well. Superintendent Larry Davis was unable to attend due to a death in the family.

Callahan reviewed the band's impressive list of accomplishments pointing out it achieved

See BAND, Page 4A

Funding Rail t Corporation

by the county commissioners court and has the authority to issue revenue bonds.

Kocher pointed out four reasons why the county would want to pursue creation of a ru-

lines and allow industrial parks to expand their spurs.

—the future possibility of offering commuter passenger service, especially to Dallas and Tyler.

—agricultural prospects of using rail for shipping.

"The main thing is even though there is no rail line in Canton, there is potential for regional development," she said.

Carol Herrens 11-18-04

Saturn CAC Information
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

CAC Case Information

CAMIS Case Number 11419612

Owner: [REDACTED]

Canton

TX [REDACTED]

Home Phone: 9034790155

Work Phone: 0000000000

Source: Family Member

Contact: Service Request

Issue Comments:

The owner's friend [REDACTED] stated her son-in-law, [REDACTED] and his girlfriend [REDACTED] were in an accident in the vehicle, and the air bags did not deploy. The owner's friend stated they were not wearing their seat belts. The owner's friend stated [REDACTED] was driving the vehicle, when she went around a curve and lost control hitting a tree head on.

Vehicle: 1G8AJ52F14Z [REDACTED] 2004

Mileage: 26323

Delivery: 2/26/2004

In Warranty: Yes

Retailer: 11954

Problems: 0 Illegation GM 12T01 - Product A41

Resolution Comments:

The owner's friend stated the incident happended on 11/15/2004 at approximately 11:45 a.m. The owner's friend stated she does not know how fast [REDACTED] was driving, but a police report was filed with the Texas Hwy Dept. The owner's friend stated the weather was clear, and the road conditions were paved and dry. The owner's friend stated her son-in-

Memo: No Corporate File: Yes
Legal: No Letter: No
Close: Yes

End of CAC Case Information

Turn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

General Comments

11-23-04 4:23 PM 903-479-0155

Left message. BLB

11-23-04

called back. She stated they are not sure what occurred in the accident. The vehicle left the road (speed unknown) went down a sand embankment of some kind and impacted a tree. The vehicle was found standing on the front end against the tree. Neither of the occupants were wearing a seatbelt. The Battery was found on the front seat. The believe it somehow left the trunk came through the rear seatback and hit the front passenger in the head. They believe this was the cause of death. is in the hospital with leg and internal injuries. She would like to have this looked into. She is the owners friend as her daughter used to be married to the owners son who was fatally injured in the accident. She can be reached by calling the owners phone and leaving a message. I advised her I would be forwarding this case to ESIS for handling. I advised her to contact ESIS in writing with an explanation of what happened. BLB

End of General Comments

Saturn CAC Information
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

CAC Memopad Information

CAMIS Case Number 11419612

Date: 11/18/2004 User: BJORGENS Approve

Type: Approve - Contact Name: Brenda Jorgensen Print Out

Date: 11/17/2004 User: SRUDOLPH Forward

Type: Forward - Contact Name: Brenda Jorgensen

Date: 11/17/2004 User: SRUDOLPH Inbound Call

Type: Inbound Call - Contact Name: [REDACTED] The owner's friend [REDACTED] stated: -her son-in-law, [REDACTED] was in an accident in the vehicle. -he hit a tree head on, and the air bags did not deploy. -the battery that was in the trunk came out, hit her son-in-law in the head, and landed in the front seat. -her son-in-law was killed. -the death report stated he was crushed. -her son-in-law's girlfriend [REDACTED] (co-owner) was also in the vehicle. [REDACTED] has a lacerated liver, and her leg was crushed. [REDACTED] is currently at Mother Frances Hospital in Tyler, TX. -there was not any property damage. [REDACTED] was driving the vehicle, and she does not know how fast she was traveling. -there were only 2 occupants in the vehicle, and they were not wearing their seat belts. -she can be reached at [REDACTED] or [REDACTED]. -Saturn can speak with [REDACTED] to address concerns. -she does not know the exact details of the accident, but she is going to read the police report. [REDACTED] was driving the vehicle, she was going around a curve when she lost control of the vehicle, and hit a tree. -the vehicle flipped up on end and then fell over. -the incident happened at approximately 11:45a.m. on 11/15/2004. -they were traveling on VZCR 4106 in Canton, TX 75103. -the weather conditions were clear, and there was not any fog or drizzle. -the road conditions were paved and dry. -there was not any traffic on the road. -a claim is filed at Farmers Insurance Company, the phone number is 800-225-0011, and Laura is the agent. -she does not know the claim number, but the policy number is [REDACTED] -she does not know the location of the vehicle. -she does not know the damage of the vehicle. -an estimate has not been performed on the vehicle. -Texas Department of Highway filed the police report, in Canton, TX. -she does not know the report number or the number for Texas Department of Highway. -there were not any other vehicles involved in the incident. -Saturn has permission to inspect the vehicle. I advised the owner's friend I would document her concerns. I advised the owner's friend a team member from the Product Support team may contact her within the next 7-10 business days by phone to address the concern. I advised the owner's friend Saturn may or may not send out a representative, and that will be determined by the Product Support Team. I provided the SR number. I advised the owner's friend to callback with additional information.

Saturn CAC Information
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Date: 11/23/2004 User: BBOONE01 Internal Contact

Type: Internal Contact - Contact Name: Brad Boone Please make this a 1241.

Date: 11/17/2004 User: SRUDOLPH Outbound Retailer Call

Type: Outbound Retailer Call - Contact Name: [REDACTED] contacted service manager Shaun Kramer to advise him of the incident. I advised Shaun to notify Saturn if the vehicle comes into his facility. I provided the VIN number, and the SR number. Shaun stated he would contact SCAC if the vehicle comes into the facility.

Date: 11/17/2004 User: SADMIN SR Summary

SR Summary The owner's friend [REDACTED] stated her son-in-law, [REDACTED] and his girlfriend [REDACTED] were in an accident in the vehicle, and the air bags did not deploy. The owner's friend stated they were not wearing their seat belts. The owner's friend stated [REDACTED] was driving the vehicle, when she went around a curve and lost control hitting a tree head on. The owner's friend stated the incident happened on 11/15/2004 at approximately 11:45 a.m. The owner's friend stated she does not know how fast [REDACTED] was driving, but a police report was filed with the Texas Hwy Dept. The owner's friend stated the weather was clear, and the road conditions were paved and dry. The owner's friend stated her son-in-law was killed, and [REDACTED] is in the hospital.

Date: 11/17/2004 User: SADMIN Standard Questions

1. There were injuries as a result of the accident. 2. Injuries: son-in-law died, [REDACTED] has a lacerated liver, and her leg 3. There was no property damage as a result of the accident. 4. [REDACTED] was driving at the time of the incident. 5. There were 2 occupants in the vehicle. 6. The Owner's evening phone is [REDACTED]. The Claimant's daytime phone is [REDACTED]. The Claimant's evening phone is [REDACTED]. 7. The events leading up to the incident are as follows: The owner's friend [REDACTED] stated her son-in-law and his g 8. The incident occurred on 11/15/2004 at 11:45. 9. VZCR 4106 in Canton, TX 7510310. clear 11. paved and dry 12. The vehicle speed is unknown. 13. Farmers Insurance Company, 800-855-0011 14. The current vehicle location is unknown. 15. The vehicle was not damaged. 16. Police Report: Texas Dept. of Hwy 17. There were no other vehicles involved in the incident. 18. Permission has not been granted to inspect the vehicle.

End of CAC Memopad Information

**Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366**

Print Date
11/24/2004

General Information

Incident Date & Time 11/15/2004

Owner
Title - First Name Middle - Last Name
Street
City Canton State TX Zip Country - Age 0
Home Phone 0000 Work Ph. 0000000000 0000
If Company Owned - Name -

Driver
Title Ms First Name Middle - Last Name
Street Owners sons girlfriend address unknown
City - State - Zip - Country - Age -
Home Phone Work Ph.

Claimant
Title Ms First Name Middle - Last Name
Street Owners sons ex mother in law address unknown
City - State - Zip - Country - Age -
Home Phone Work Ph.

Represented by Attorney? No
Attorney
Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

End of General Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Vehicle Information

VIN 1G8AJ52F14Z
Year - Model ION New/Used/Demo USED Delivery Date 2/26/2004
Transaxle AUT Engine 4 CYL 2.2L ENGINE Mileage 26323
License# - State -

Inspection# - Station -
Expiration Date -

Special Equipment/Features

Sir Equipped Yes ABS No Traction Control No

Nature and Extent of Damages

Est. Cost of Repairs \$ 0
Source of Estimate -

Product Campaigns That Vehicle Was Subject of.
If Appropriate, Attach Copy of Campaign Bulletin.

Campaign Status	Description
04095	00 OPEN 2003-2004 SATURN ION DRL/TURN SIGNAL BULB REPLACEMENT

Tires	Size	Brand	Condition	Air/psi	Tread/32 in
Left Front	-	-	-	0	0
Comments	-	-	-	-	-
Right Front	-	-	-	0	0
Comments	-	-	-	-	-
Left Rear	-	-	-	0	0
Comments	-	-	-	-	-
Right Rear	-	-	-	0	0
Comments	-	-	-	-	-
Spare	-	-	-	0	0
Comments	-	-	-	-	-

End of Vehicle Information

**Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366**

Print Date
11/24/2004

Property Damage

Damage, Other than Owners Vehicle (Vehicle Property No Other Than Vehicle No)

Owner
Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Driver
Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Vehicle
Make/Model/Year -
Estimate of Speed -
By Whom? -

Extent of Damage
-

Property Owner
Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Kind of Damage
-
Extent of Damage
-
Additional Comments
-

End of Property Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Bodily Injuries

Bodily Injuries? Yes

Number of People: 2

1)
Title Mr First Name [REDACTED] Middle - Last Name [REDACTED]
Street [REDACTED] Owners son
City Canton State TX Zip [REDACTED] Country USA Age -
Home Phone [REDACTED] 0000 Work Ph. [REDACTED] 0000000000 0000

Location Code -

Driver's Name : -

Seating Position: Front Passenger

Nature of Injuries:

fatally wounded, blunt force trauma to the head.

Where were Injuries Treated?

By Whom?

Claimant Reported: Seat Belt Usage: No Shoulder Belts?: No Lap?: No

2)
Title Ms First Name [REDACTED] Middle - Last Name [REDACTED]
Street Owners sons Girlfriend
City - State - Zip - Country - Age -
Home Phone Work Ph.

Location Code -

Driver's Name : -

Seating Position: Driver

Nature of Injuries:

Lacerated Liver, leg crushed

Where were Injuries Treated?

Mother Francis Hospital, Tyler TX

By Whom?

Claimant Reported: Seat Belt Usage: No Shoulder Belts?: No Lap?: No

End of Bodily Injuries

aturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Incident Information

Was Another Vehicle Involved? No Number of Vehicles 0

Did vehicle overturn? No

Where can vehicle be seen? J and W Wrecking Yard

Principal use of vehicle Personal

Driver Description

-

Did you speak to driver? No

If No, Give Source of Driver Desc. -

Nature of Weather -

What Component(s) are Allegedly defective air bags

Who made allegation of defect Owners friend

Estimated Vehicle Speed 0 -

Source of Estimated Vehicle Speed -

Was Vehicle towed? No

Towing Co. Name -

Towing Co. Address -

Tow Driver Name -

End of Incident Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Location Information

Police Report Made? Yes Report Attached? No
Station Making Report - _____

Officer
Title - _____ First Name - _____ Middle - _____ Last Name - _____
Street - _____
City - _____ State - _____ Zip - _____ Country - _____ Age - _____
Home Phone _____ Work Ph. _____

Witness
Title - _____ First Name - _____ Middle - _____ Last Name - _____
Street - _____
City - _____ State - _____ Zip - _____ Country - _____ Age - _____
Home Phone _____ Work Ph. _____

Location of Incident
- _____

Kind of Road - _____ Kind of Shoulder - _____
Condition of Road - _____ Condition of Shoulder - _____ Posted Speed 0 MPH

Visual Obstructions
- _____

Additional Comments
- _____
- _____

End of Location Information

aturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Retailer / Parts Detail Information

Were Photos Taken? No Number? 0

By Whom?

Title - First Name - Middle - Last Name -

Street 100 Saturn Pkwy

City Spring Hill State TN Zip 37174 Country USA Age 0

Home Phone Work Ph.

Vehicle Inspected No Inspector(s) Name -

CIGNA Rep. at Investigation

Selling Retailer SATURN OF TYLER

City TYLER State TX

Servicing Retailer SATURN OF TYLER

City TYLER State TX

Did Search of the National Service History Produce Customer Service Orders? Yes

How Many Line Items? 18

How & When was matter left with claimant?

Forwarded to ESIS for handling.

End of Retailer Information

Saturn CAC Information
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

CAC Legal Information

CAMIS Case Number 11419612

Legal Information I

Case Type: Product Liabili

PL Basic Info: Product Liabili

Reason:

-

Representation: No

Request: -

Vehicle Disposition: -

Legal Information II

Outcome: -

Legal Correspondence: No

PL Basic Information I

Allegation: The owner's friend [REDACTED] stated her son-in-law and his g

Driver at time of incident: [REDACTED]

Vehicle Damage: No Description: -

Property Damage: No Description: -

Date and Time of the incident: 11/15/2004

PL Basic Information II

Injuries: Yes Description: son-in-law died, [REDACTED] has a laceratd

Additional Vehicle Involved? No Description: -

Police Report Filed? Yes Where? Texas Dept. of Hwy

Where is the vehicle now? -

Contact # for vehicle location: 90347901550000

Claimant's Permission for Investigation? No

End of CAC Legal Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # PLC200400366

Print Date
11/24/2004

Notification / Investigator Detail Information

Saturn Notified on Incident?
How? Service Request When? 11/17/20
Area Assigned SC

Assignment

Investigator
First Name Brad Middle L Last Name Boone
Assignment Date 11/24/2004 Due Date 12/4/2004
Investigation Date - Received Date 11/24/2004

Info. from Further Investigation

-
CIGNA Office Code DETROIT, MI Date Sent -
Area Approved By - Date -
C.O.Approved By - Date -

End of Notify Information

Saturn Product Liability
Option Report
**** Saturn Confidential ****

Case Nbr: PLC200400366
Vin: 1G8AJ52F14Z [REDACTED]

OPTION CODE	OPTION DESCRIPTION
-----	-----
C60	AIR CONDITIONING
AR9	FRT SEAT BKT
6AB	FRT LH STRUT
D35	MANUAL O/S MIRROR
J41	BRAKES
U1C	AM/FM CD RADIO
7AB	FRT RH STRUT
8AF	RR LH STRUT
9AF	RR RH STRUT
VK3	FRONT LICENSE BRKT
PG1	15IN STEEL WHEEL
33L	GOLDEN WHEAT
33U	GOLDEN WHEAT
R9Z	PROCESSING OPTION
FE9	FEDERAL EMISSION
AK5	RESTRAINT SYS SEAT
L61	4 CYL 2.2L ENGINE
NK5	STD STEERING WHL
FH9	TRANS RATIO 2.6
52C	TAN CLOTH
SLL	SOLD ORD PROC OPT
B25	TRIM EQUIP LUGG COMP
B37	FLOOR MATS
DL5	ROADSIDE SVC DECAL
FE1	SUSPENSION SYSTEM
IPC	TRIM INTERIOR DESIGN
K62	GENERATOR
MX0	MERCH TRANS AUTO
M43	AUTOMATIC TRANSMISSN
QTU	P195/60R15 TIRE
UH8	INSTRUMENT CLUSTER
US6	ANTENNA
UX7	4 SPEAKER SYSTEM
V73	US/CAN VEH STATEMENT
52I	TAN INTERIOR TRIM
NT9	FEDERAL EMISSION SYS
RF3	MERCH PKG L2 SDN AUT
BBC	BODY COLOR ROOF RAIL

End Of Option Report

CSO History Information
Case # - PLC200400366
VIN - 1G8AJ52F14Z XXXXXXXXXX

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
11954	0050274	26323	01	CP	9/23/2004	\$0.00	M5300
	Complaint	- -					
	Conditon	- -					
	Cause	- -					
	Failed Labor	-					
	Failed Part Nbr	-					
11954	0050274	26323	02	CP	9/23/2004	\$0.00	M5300
	Complaint	- -					
	Conditon	- -					
	Cause	- -					
	Failed Labor	-					
	Failed Part Nbr	-					
11954	0050274	26323	03	CP	9/23/2004	\$0.00	M5300
	Complaint	- -					
	Conditon	- -					
	Cause	- -					
	Failed Labor	-					
	Failed Part Nbr	-					
11954	0050274	26323	04	CP	9/23/2004	\$0.00	M5300
	Complaint	- -					
	Conditon	- -					
	Cause	- -					
	Failed Labor	-					
	Failed Part Nbr	-					
11219	0030752	19813	01	VW	7/28/2004	\$636.76	D2109
	Complaint	- V13 - LEAKS					
	Conditon	- -					
	Cause	- E08 - INTERFERENCE					
	Failed Labor	-					
	Failed Part Nbr	- 52495785 - CASE ASM-A/C EVPR					
	Tech Comments	- REMOVED CASE FOR DISASSEMBLY PER DAN SUBLETT. UPPE R CASE BROKEN, REPLACED & SEALED LOWER SECTION					

CSO History Information**Case # - PLC200400366****VIN - 1G8AJ52F14Z** XXXXXXXXXX

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
----------	---------	-------	----------	----------	--------	----------	----------

11219	0030287	16123	02	VW	6/29/2004	\$28.43	D9993
-------	---------	-------	----	----	-----------	---------	-------

Complaint - V13 - LEAKS

Conditon - -

Cause - C78 - SEAL/SEALING/LEAKS

Failed Labor -

Failed Part Nbr - 25652432 - PLUG-RKR INR PNL RR EXTN HOLE

Tech Comments - HVAC MODULE LEAKING. PERFORMED TSB #03-01-38-020 T
O REPAIR CASE

11219	0029612	10270	01	VW	5/19/2004	\$78.72	E2180
-------	---------	-------	----	----	-----------	---------	-------

Complaint - N07 - CLUNK/THUMPING

Conditon - -

Cause - C45 - LOOSE/LOOSE PART

Failed Labor -

Failed Part Nbr - 10370615 - INSULATOR-FRT STAB SHF

Tech Comments - PERFORMED TSB #04-03-08-003

11219	0028684	2625	02	VW	3/25/2004	\$231.98	C0181
-------	---------	------	----	----	-----------	----------	-------

Complaint - N06 - CLICK/TICKING

Conditon - -

Cause - C29 - INOPERATIVE PART

Failed Labor -

Failed Part Nbr - 22716578 - REGULATOR ASM-FRT S/D WDO

Tech Comments - BOTH FRONT REGULATORS HAVE CLICKING NOISE WHEN ROL
LING UP OR DOWN
~B AUTHO PER FOM SHAUN KRAMER

11219	0028684	2625	03	VW	3/25/2004	\$180.12	C0120
-------	---------	------	----	----	-----------	----------	-------

Complaint - V25 - SCRATCHES - FINE

Conditon - -

Cause - C29 - INOPERATIVE PART

Failed Labor -

Failed Part Nbr - 22729941 - SEALING STRIP-FRT S/D WDO INR

Tech Comments - REPLACED WEATHERSTRIPS PER BULLETIN #03-08-64-038
~B AUTHO PER FOM SHAUN KRAMER

11219	0028684	2625	04	CP	3/25/2004	\$0.00	R9995
-------	---------	------	----	----	-----------	--------	-------

Complaint - -

Conditon - -

Cause - -

Failed Labor -

Failed Part Nbr - -

CSO History Information**Case # - PLC200400366****VIN - 1G8AJ52F14Z**

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
11219	0028313	372	01	LR	3/3/2004	\$2,000.00	X5021
Complaint - -							
Conditon - -							
Cause - -							
Failed Labor -							
Failed Part Nbr -							
Tech Comments - RHONDA ERICKSON DELIVEY DATE 02/26/04							
11219	0028313	372	02	LR	3/3/2004	\$500.00	X5026
Complaint - -							
Conditon - -							
Cause - -							
Failed Labor -							
Failed Part Nbr -							
Tech Comments - RHONDA ERICKSON DELIVERY DATE 02/26/04							
11219	0028300	372	01	LR	3/2/2004	\$150.00	X5033
Complaint - -							
Conditon - -							
Cause - -							
Failed Labor -							
Failed Part Nbr -							
Tech Comments - RHONDA ERICKSON DELIVERY DATE 02/26/04 APR 60 SALES CONSULTANT KYLE DAVIS							
11219	0028258	377	01	CP	3/1/2004	\$0.00	M5088
Complaint - -							
Conditon - -							
Cause - -							
Failed Labor -							
Failed Part Nbr -							
11219	0028251	376	01	CP	3/1/2004	\$0.00	M5088
Complaint - -							
Conditon - -							
Cause - -							
Failed Labor -							
Failed Part Nbr -							

CSO History Information
Case # - PLC200400366
VIN - 1G8AJ52F14Z

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
----------	---------	-------	----------	----------	--------	----------	----------

10910	0333737	6	01	VW	1/29/2004	\$7.21	A5580
-------	---------	---	----	----	-----------	--------	-------

Complaint - V07 - DIRT
Conditon - -
Cause - E04 - CORROSION/RUST
Failed Labor -
Failed Part Nbr -
Tech Comments - VERIFIED
RAIL DUST ON VEHICLE
REMOVE RAIL DUST WITH CLAY MATERIAL

10910	0333648	5	01	PD	1/27/2004	\$100.33	Z7000
-------	---------	---	----	----	-----------	----------	-------

Complaint - M10 - PDI
Conditon - -
Cause - M10 - PDI
Failed Labor -
Failed Part Nbr -
Tech Comments - COMPLETED

10910	0333648	5	02	CP	1/27/2004	\$0.00	M6015
-------	---------	---	----	----	-----------	--------	-------

Complaint - -
Conditon - -
Cause - -
Failed Labor -
Failed Part Nbr -

END OF CSO HISTORY REPORT

SPRUIELL LAW OFFICE

150 South Capitol Street
Canton, Texas 75103

J. Patrick Spruiell

Of Counsel:

Rothwell B. Pool

Board Certified-Family Law

Tel: (903) 567-4187

Fax: (903) 567-2510

Email: j.p.spruiell@texascellnet.com

RECEIVED

JAN 24 2005

ESIS-GM CLAIMS UNIT

January 19, 2005

Ms. Jemeia Alexander
ACE ESIS/GM Central Claims Unit
P. O. Box 300
Mail Code 482 C20 D71
Detroit, Michigan 48265-3000

Re: My client: [REDACTED]
Your insured: General Motors Corporation
Claim No.: [REDACTED]
D/A: November 15, 2004
Place: Van Zandt County, Texas

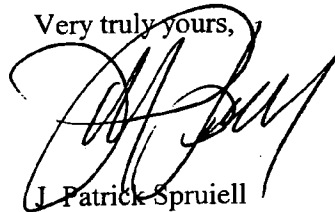
Dear Ms. Alexander:

Please be advised that this law firm is representing the above-captioned individual in her claim for personal injuries arising from an automobile accident which occurred on November 15, 2004.

I am in the process of gathering all of the requested information and as soon as receive it, I will forward a copy of the same on to you in hopes of being able to negotiate a reasonable settlement in this matter.

I look forward to working with you in this matter and if you have any questions, please do not hesitate to call.

Very truly yours,



J. Patrick Spruiell

JPS/ds

TA000078124

SPRUIELL LAW OFFICE

150 South Capitol Street
Canton, Texas 75103

J. Patrick Spruiell

Of Counsel:

Rothwell B. Pool
Board Certified-Family Law

Tel: (903) 567-4187
Fax: (903) 567-2510
Email: spruiell@texascellnet.com

May 31, 2005

RECEIVED

JUN 07 2005

ESIS-GM CLAIMS UNIT

Ms. Jemeia Alexander
ACE ESIS/GM Central Claims Unit
P. O. Box 300
Mail Code 482 C20 D71
Detroit, Michigan 48265-3000

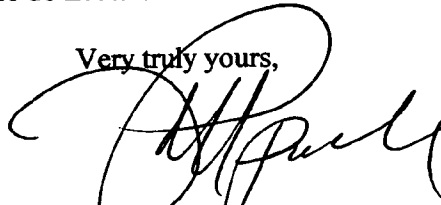
Re:	My client:	[REDACTED]
	Your insured:	General Motors Corporation
	Claim No.:	489548
	D/A:	November 15, 2004
	Place:	Van Zandt County, Texas

Dear Ms. Alexander:

Pursuant to your May 23, 2005 letter, please be advised that we are in the process of trying to determine medically what damages were sustained due to the air-bag failure. As soon as I am able to obtain the necessary medical information, I will advise you of the same.

If you have any questions, please do not hesitate to call.

Very truly yours,



J. Patrick Spruiell

JPS/ds

CDR File Information

Vehicle Identification Number	1G8AJ52F14Z
Investigator	M. Byrd
Case Number	489548
Investigation Date	Wednesday, January 19 2005
Crash Date	Monday, November 15 2004
Filename	1G8AJ52F14Z CDR
Saved on	Wednesday, January 19 2005 at 08:49:21 AM
Data check information	17C25FD9
Collected with CDR version	Crash Data Retrieval Tool 2.70
Collecting program verification number	70812808
Reported with CDR version	Crash Data Retrieval Tool 2.70
Reporting program verification number	70812808
Interface used to collected data	Block number: 00 Interface version: 41 Date: 11-04-04 Checksum: 9E00
Event(s) recovered	Non-Deployment

SDM Data Limitations

SDM Recorded Crash Events:

There are two types of SDM recorded crash events. The first is the Non-Deployment Event. A Non-Deployment Event is an event severe enough to "wake up" the sensing algorithm but not severe enough to deploy the air bag(s). It contains Pre-Crash and Crash data. The SDM can store up to one Non-Deployment Event. This event can be overwritten by an event that has a greater SDM recorded forward velocity change. This event will be cleared by the SDM after the ignition has been cycled 250 times.

The second type of SDM recorded crash event is the Deployment Event. It also contains Pre-Crash and Crash data. The SDM can store up to two different Deployment Events, if they occur within five seconds of one another. Deployment events cannot be overwritten or cleared from the SDM. Once the SDM has deployed the air bag, the SDM must be replaced.

The data in the non-deployment file will be locked after a deployment, if the non-deployment occurred within 5 seconds before the deployment or a deployment level event occurs within 5 seconds after the deployment.

SDM Data Limitations:

-SDM Recorded Vehicle Forward Velocity Change reflects the change in forward velocity that the sensing system experienced during the recorded portion of the event. SDM Recorded Vehicle Forward Velocity Change is the change in velocity during the recording time and is not the speed the vehicle was traveling before the event, and is also not the Barrier Equivalent Velocity. This data should be examined in conjunction with other available physical evidence from the vehicle and scene when assessing occupant or vehicle forward velocity change. For deployments and deployment level events, the SDM will record 100 milliseconds of data after deployment criteria is met and up to 50 milliseconds before deployment criteria is met. For non-deployments, the SDM will record the first 150 milliseconds of data after algorithm enable.

-Event Recording Complete will indicate if data from the recorded event has been fully written to the SDM memory or if it has been interrupted and not fully written.

-SDM Recorded Vehicle Speed accuracy can be affected if the vehicle has had the tire size or the final drive axle ratio changed from the factory build specifications.

-Brake Switch Circuit Status indicates the status of the brake switch circuit.

-Pre-Crash Electronic Data Validity Check Status indicates "Data Invalid" if the SDM does not receive a valid message.

-Driver's Belt Switch Circuit Status indicates the status of the driver's seat belt switch circuit.

-The Time between Non-Deployment and Deployment Events is displayed in seconds. If the time between the two events is greater than five seconds, "N/A" is displayed in place of the time.

-If power to the SDM is lost during a crash event, all or part of the crash record may not be recorded.

SDM Data Source:

All SDM recorded data is measured, calculated, and stored internally, except for the following:

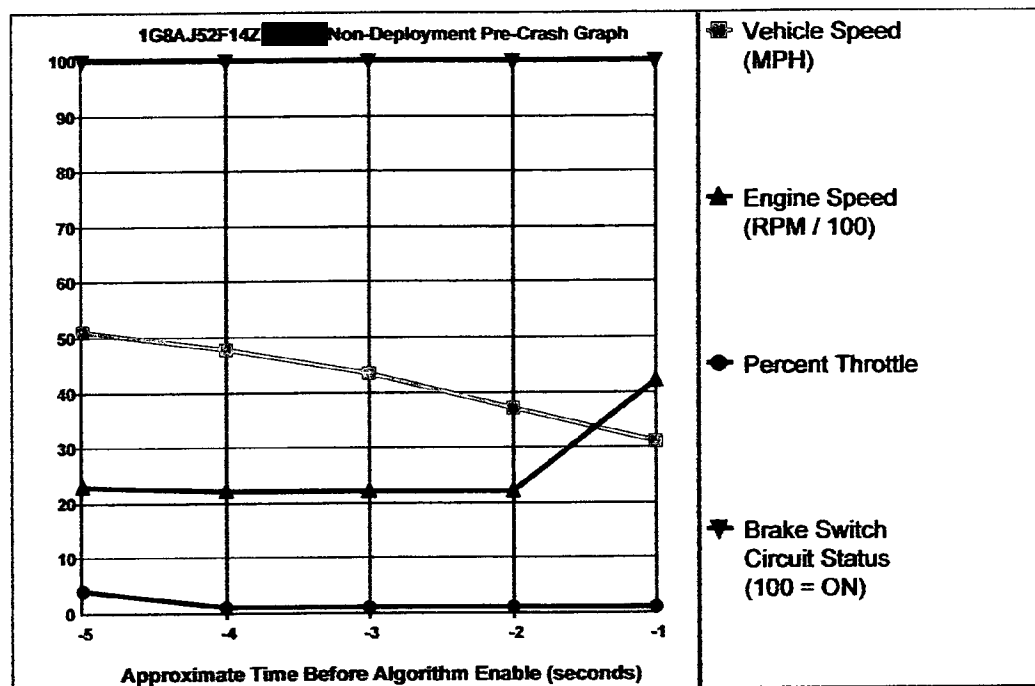
-Vehicle Speed, Engine Speed, and Percent Throttle data are transmitted once a second by the Powertrain Control Module (PCM), via the Class 2 data link, to the SDM.

-Brake Switch Circuit Status data is transmitted once a second by either the ABS module or the PCM, via the Class 2 data link, to the SDM. Depending on vehicle option content, the Brake Switch Circuit Status data may not be available.

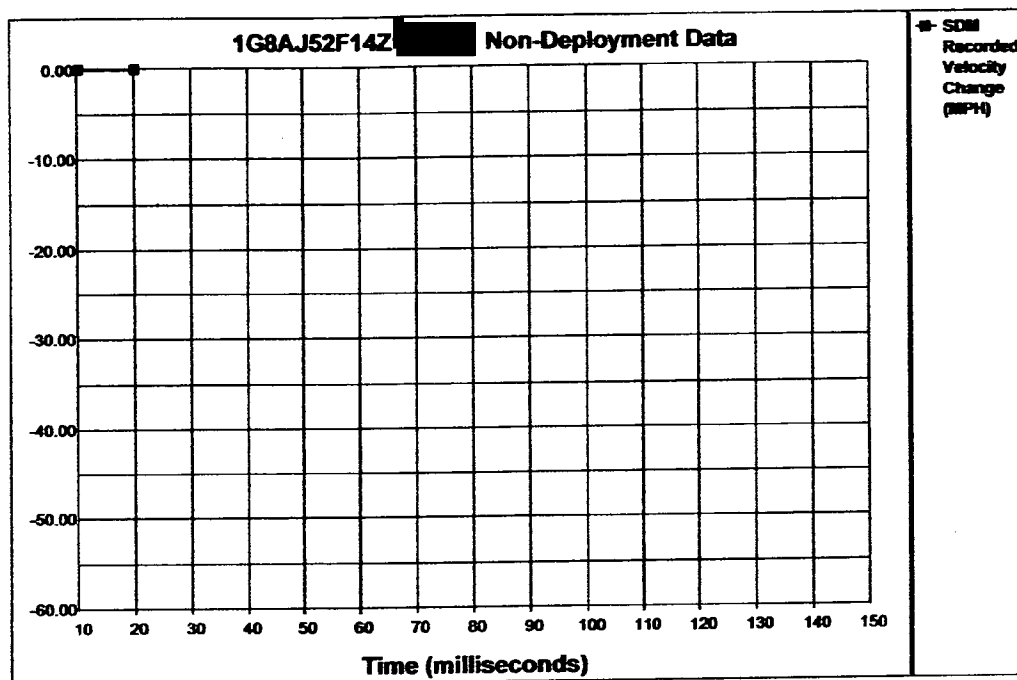
-In most vehicles, the Driver's Belt Switch Circuit is wired directly to the SDM. In some vehicles, the Driver's Belt Switch Circuit Status data is transmitted from the Body Control Module (BCM), via the Class 2 data link, to the SDM.

System Status At Non-Deployment

SIR Warning Lamp Status	OFF
Driver's Belt Switch Circuit Status	UNBUCKLED
Ignition Cycles At Non-Deployment	1902
Ignition Cycles At Investigation	2300
Maximum SDM Algorithm Forward Velocity Change (MPH)	-0.04
Algorithm Enable to Maximum SDM Recorded Velocity Change (msec)	25
A Deployment was Commanded Prior to this Event	No



Seconds Before AE	Vehicle Speed (MPH)	Engine Speed (RPM)	Percent Throttle	Brake Switch Circuit Status
-5	51	2304	4	ON
-4	48	2240	1	ON
-3	44	2176	1	ON
-2	37	2176	1	ON
-1	31	4160	1	ON



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
SDM Recorded Velocity Change	0.00	0.00	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A

Hexadecimal Data

This page displays all the data retrieved from the air bag module.
It contains data that is not converted by this program.

```

$01 A2 26 00 00 00 00
$02 A8 5F 00 00 00 00
$03 41 53 33 33 35 32
$04 4B 35 39 30 52 31
$05 02 41 00 00 00 00
$06 22 70 85 00 00 00
$10 FE E0 F0 00 00 00
$11 9F 00 91 00 00 83
$12 00 00 00 00 00 00
$13 03 00 00 00 00 00
$14 F3 04 ED 00 50 00
$18 83 83 83 4E FF 00
$1C 38 32 41 FA FA FA
$1D FA 38 32 41 FA FA
$1E FA FA 00 00 00 00
$1F FF 02 00 00 00 00
$20 00 00 00 7D 80 00
$21 FF FF FF FF FF FF
$22 FF FF FF FF 00 00
$23 00 00 FF FF FF FF
$24 FF FF FF FF FF FF
$25 FF FF FF 02 00 00
$26 32 3C 46 4D 52 FE
$27 03 03 03 03 0B 00
$28 41 22 22 23 24 00
$29 FF 12 C0 00 00 00
$2A 00 00 00 00 00 00
$2B 00 00 00 00 00 00
$2C 00 00 FF 01 00 03
$2D 00 00 00 00 00 00
$2E 00 00 00 00 00 00
$30 FF FF FF FF FF 00
$31 FF FF FF FF FF FF
$32 FF FF FF FF 00 00
$33 FF FF FF FF FF FF
$34 FF FF FF FF FF FF
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$44 FF 00 00 00 00 00
$50 00 00 00 00 0A 05
$51 0A FF 00 00 00 00
$60 FF FF FF FF FF FF
$61 FF 00 00 00 00 00
  
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Comments

Non-Deployment Allegation

Vehicle Not Repaired

Vehicle at Insurance Auto Auction Longview, TX

Data Retrieved Out of Vehicle

Odometer Reading Unknown

TEXAS PEACE OFFICER'S ACCIDENT REPORT ST-3 (6) (80)

MAIL TO: ACCIDENT RECORDS, TEXAS DEPARTMENT OF PUBLIC SAFETY, PO BOX 4067, AUSTIN TX 78773-0067

PLACE WHERE ACCIDENT OCCURRED COUNTY <u>VAN ZANDT</u> CITY OR TOWN _____		LOC. NO. _____
IF ACCIDENT WAS OUTSIDE CITY LIMITS, INDICATE DISTANCE FROM NEAREST TOWN <u>4.9</u> MILES NORTH ☐ EAST ☒ WEST ☐ OF <u>Canton</u> CITY OR TOWN		DO NOT WRITE IN THIS SPACE LOC. _____ CODE _____ SEVERITY _____ FAT REC. _____ DR REC. _____
ROAD ON WHICH ACCIDENT OCCURRED BLOCK NUMBER <u>VZCR 4106</u> STREET OR ROAD NAME _____ ROUTE NUMBER OR STREET CODE _____ INTERSECTING STREET OR RR XING NUMBER _____ NOT AT INTERSECTION <u>0.4</u> ☐ FT ☐ MI ☐ S ☐ E ☐ W ☐ OF _____ CONSTR. ☐ YES SPEED ZONE ☐ NO LIMIT <u>40</u> CONSTR. ☐ YES SPEED ZONE ☐ NO LIMIT _____ SHOW MULTIPLE OR NEAREST INTERSECTING NUMERED HIGHWAY IF NONE, SHOW NEAREST INTERSECTING STREET OR REFERENCE POINT		CR
DATE OF ACCIDENT <u>November 15, 2004</u> DAY OF WEEK <u>Monday</u> HOUR <u>11:50</u> ☐ A.M. ☐ P.M. IF EXACTLY NOON ☐ P.M. OR BEGINNING, NO STATE		
UNIT NO. 1 - MOTOR VEHICLE VEH IDENT NO. <u>1G8AJ52F14Z</u> IF BODY STYLE = VAN OR BUS, INDICATE SEATING CAPACITY _____ YEAR <u>2004</u> COLOR & MAKE <u>Tan Saturn</u> MODEL NAME _____ BODY STYLE <u>4 door</u> LICENSE PLATE <u>05 TX</u> _____ DRIVER'S NAME _____ ADDRESS (STREET, CITY, STATE, ZIP) <u>Canton, TX</u> PHONE NUMBER _____ DRIVER'S LICENSE <u>TX</u> <u>C</u> DOB _____ RACE <u>W</u> SEX <u>F</u> OCCUPATION <u>Nurse's Aid</u> SPECIMEN TAKEN (ALCOHOL / DRUG ANALYSIS) <u>2</u> ALCOHOL / DRUG ANALYSIS RESULT <u>Pending</u> PEACE OFFICER, EMS DRIVER, FIREFIGHTER ON EMERGENCY? ☐ YES ☐ NO LESSOR ☐ OWNER ☒ Same as above NAME (ALWAYS SHOW LESSOR IF LEASED, OTHERWISE SHOW OWNER) ADDRESS (STREET, CITY, STATE, ZIP) _____ LIABILITY ☐ YES ☐ NO <u>Farmer's</u> VEHICLE DAMAGE RATING <u>12-FD-7</u> INSURANCE ☐ NO _____ POLICY NUMBER _____ <u>11-LD-4</u>		
UNIT NO. 2 - TOWED ☐ PEDESTRIAN ☐ OTHER ☐ VEH IDENT NO. _____ IF BODY STYLE = VAN OR BUS, INDICATE SEATING CAPACITY _____ YEAR _____ COLOR & MAKE _____ MODEL NAME _____ BODY STYLE _____ LICENSE PLATE _____ DRIVER'S NAME _____ ADDRESS (STREET, CITY, STATE, ZIP) _____ PHONE NUMBER _____ DRIVER'S LICENSE _____ DOB _____ RACE _____ SEX _____ OCCUPATION _____ SPECIMEN TAKEN (ALCOHOL / DRUG ANALYSIS) _____ ALCOHOL / DRUG ANALYSIS RESULT _____ PEACE OFFICER, EMS DRIVER, FIREFIGHTER ON EMERGENCY? ☐ YES ☐ NO LESSOR ☐ OWNER ☐ NAME (ALWAYS SHOW LESSOR IF LEASED, OTHERWISE SHOW OWNER) ADDRESS (STREET, CITY, STATE, ZIP) _____ LIABILITY ☐ YES ☐ NO _____ VEHICLE DAMAGE RATING _____ INSURANCE ☐ NO _____ POLICY NUMBER _____		
DAMAGE TO PROPERTY OTHER THAN VEHICLES <u>None</u> NAME AND ADDRESS (STREET, CITY, STATE, ZIP) OF OWNER _____ FEET FROM CURB _____ DAMAGE EXTENT _____		
LIGHT CONDITION <u>1</u> 1-DAYLIGHT 2-DAWN 3-DARK-NOT LIGHTED 4-DARK-LIGHTED 5-DUSK	WEATHER <u>1</u> 1-CLOUDY 2-RAINING 3-SHOWING 4-FOG 5-BLOWING DUST 6-SMOKE 7-SLEETING 8-HIGH WINDS 9-OTHER	SURFACE CONDITION <u>1</u> 1-DRY 2-WET 3-MUDDY 4-SNOWY / ICY 5-OTHER
TYPE ROAD SURFACE <u>1</u> 1-BLACKTOP 2-CONCRETE 3-GRAVEL 4-SHELL 5-DIRT 6-OTHER		
DESCRIBE ROAD CONDITIONS (INVESTIGATOR'S OPINION) _____		
IN YOUR OPINION, DID THIS ACCIDENT RESULT IN AT LEAST \$1000.00 DAMAGE TO ANY ONE PERSON'S PROPERTY? ☒ YES ☐ NO		
CHARGES FILED NAME _____ CHARGE <u>Intoxication Manslaughter</u> CITATION NUMBER <u>H489874</u> NAME _____ CHARGE <u>Drive not secured by seatbelt</u> CITATION NUMBER <u>H489875</u> NAME _____ CHARGE <u>Unsafe Speed</u> CITATION NUMBER _____		
TIME NOTIFIED OF ACCIDENT <u>11/15/04</u> <u>12:10 P.M.</u> NOW <u>Van Zandt Co. S.O.</u> TIME ARRIVED AT SCENE OF ACCIDENT <u>11/15/04</u> <u>12:23 P.M.</u> TYPED OR PRINTED NAME OF INVESTIGATOR <u>Betsy Asplund</u> DATE REPORT MADE <u>11/15/04</u> IS REPORT COMPLETE ☐ YES ☒ NO SIGNATURE OF INVESTIGATOR <u>Betsy Asplund</u> ID NO. <u>11174</u> DEPARTMENT <u>DPS/THP</u> DIST. / AREA <u>1B8</u>		

SOLICITATION (GDL)		EJECTED	CODE FOR TYPE RESTRAINT USED	AIRBAG CODE	HELMET USE	CODE FOR INJURY SEVERITY	COMPLETE IF CASUALTY NOT IN MOTOR VEHICLE
PROVIDE PERSON TO CONTACT TO REEVALUATE CONTACT FROM PERSONS BEYOND PROFESSIONAL EMPLOYMENT AS / FOR AN ATTORNEY, CHIROPRACTOR, PHYSICIAN, SURGEON, PRIVATE INVESTIGATOR, OR ANY OTHER PERSON REGISTERED OR LICENSED BY A HEALTH CARE REGULATORY AGENCY YES TO SOLICITATION NO SOLICITATION		A - NOT APPLICABLE V - YES H - NO P - PARTIALLY U - UNKNOWN	A - SEATBELT & SHOULDER STRAP B - SEATBELT & NO SHOULDER STRAP C - CHILD SEATBELT D - CHILD SEATBELT ONLY E - NONE	V - DEPLOYED H - NO DEPLOYMENT U - UNKNOWN IF DEPLOYED	1 - UNDEMANAGED 2 - BURN NOT DAMAGED 3 - BURNING IF DAMAGED 4 - NOT BURN 5 - UNKNOWN IF BURN	A - KILLED B - INCAPACITATING INJURY C - NON INCAPACITATING D - POSSIBLE INJURY E - NOT INJURED	1 - BREATH 2 - BLOOD 3 - OTHER 4 - NONE 5 - REFUSED

UNIT NO. 1	12-PD-7	TOWED DUE TO DAMAGE	VEHICLE REMOVED TO
DAMAGE RATING	11.1D-4	☒ YES ☐ NO	R M Wrecker

OCCUPANT'S POSITION		NAME (LAST NAME FIRST)	ADDRESS (STREET, CITY, STATE, ZIP)	SOL	EJECTED	TYPE RESTRAINT USED	AIRBAG	HELMET	AGE	SEX	INJURY CODE
DRIVER	SEE FRONT		Canton, TX	N	Y	N	N	-			F A
RF			Canton, TX	N	N	N	N	-			M K

UNIT NO. 2	(COMPLETE ONLY IF UNIT NO. 2 WAS A MOTOR VEHICLE)	TOWED DUE TO DAMAGE	VEHICLE REMOVED TO
DAMAGE RATING		☐ YES ☐ NO	

OCCUPANT'S POSITION		NAME (LAST NAME FIRST)	ADDRESS (STREET, CITY, STATE, ZIP)	SOL	EJECTED	TYPE RESTRAINT USED	AIRBAG	HELMET	AGE	SEX	INJURY CODE
DRIVER	SEE FRONT										

COMPLETE IF CASUALTY NOT IN MOTOR VEHICLE		CASUALTY NAME (LAST NAME FIRST)	CASUALTY ADDRESS (STREET, CITY, STATE)	SOL	TYPE SPECIMEN TAKEN	RESULT	HELMET	AGE	SEX	INJURY CODE
PEDESTRIAN										

DISPOSITION OF KILLED AND INJURED		IF AMBULANCE USED, SHOW
ITEM NUMBER	TAKEN TO	TIME NOTIFIED AT SCENE
1	Trinity Mother Frances - Tyler, TX	12:10P
2	Dallas Co. Medical Examiner	12:20P

ITEM NUMBER	DATE OF DEATH	TIME OF DEATH	ITEM NUMBER	DATE OF DEATH	TIME OF DEATH	ITEM NUMBER	DATE OF DEATH	TIME OF DEATH
2	11/15/2004	1:45P						

INVESTIGATOR'S NARRATIVE OPINION OF WHAT HAPPENED (ATTACH ADDITIONAL SHEETS IF NECESSARY)

Unit #1, northbound on VZCR4106, veered off of the roadway to the left. Unit #1 struck the brush line, causing damage along the left side, and continued northbound. Unit #1 struck a tree head-on, causing the rear-end to leave the ground. The vehicle pivoted on the front end, coming to rest on the driver's side. The passenger, sitting right front, was apparently killed on impact. Driver was partially ejected, with her leg caught under the steering wheel. The front end was severely damaged and the windshield was smashed. Driver was intoxicated by illegal drugs.

DIAGRAM ☐ ONE WAY ☒ TWO WAY ☐ DIVIDED

INDICATE NORTH

VZCR 4106

TREE

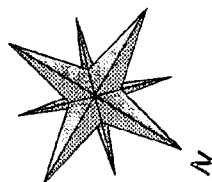
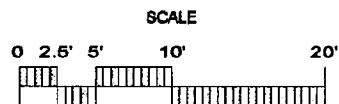
BRUSH LINE

FENCE

- NOT TO SCALE -

FACTORS AND CONDITIONS LISTED ARE THE INVESTIGATOR'S OPINION		OTHER FACTORS / CONDITIONS MAY OR MAY NOT HAVE CONTRIBUTED	4-NO CONTROL OR INOPERATIVE	TRAFFIC CONTROL
FACTORS / CONDITIONS CONTRIBUTING 1. UNIT 1 68 2. 60 3. - 4. UNIT 2 1 5. 2 6. 1		UNIT 1 1 - 2 - UNIT 2 1 - 2 -	1-LEFT TURN OR FLARE 2-STOP AND GO SIGNAL 3-STOP SIGN 4-FLASHER RED LIGHT	5-TURN SIGNAL 6-WEAVING SIGN 7-FLASHER ON SIGNAL 8-YIELD SIGN 9-FLASHER STRIKE OR CHURN 10-NO PARKING ZONE 11-OTHER FACTORS

1. ANIMAL ON ROAD - DOMESTIC	11. DISTRACTION IN VEHICLE	21. FAILED TO YIELD RIGHT - TURNING (RTT)	31. PARKED WITHOUT LIGHTS
2. ANIMAL ON ROAD - WILD	22. DRIVER INATTENTION	32. FAILED TO YIELD RIGHT - TURN ON RED	32. PARKED IN NO PARKING ZONE
3. BACKED WITHOUT SAFETY	23. DROVE WITHOUT HEADLIGHTS	33. FAILED TO YIELD RIGHT - YIELD SIGN	33. PARKED ON RIGHT SHOULDER
4. CHANGED LANE WITHOUT NOTICE	24. FAILED TO CONTROL SPEED	34. FAILED TO YIELD RIGHT - YIELD SIGN	34. PEDESTRIAN FAILED TO YIELD RIGHT TO VEHICLE
5. DEFECTIVE OR NO HEADLIGHTS	25. FAILED TO COME IN SINGLE LANE	35. FATIGUED OR ASLEEP	35. SPEEDING - EXCEEDED (SPEED LIMIT)
6. DEFECTIVE OR NO STOP LIGHTS	26. FAILED TO COME HALF OF ROADWAY	36. FAULTY BRAKE ACTION	36. SPEEDING - OVER LIMIT
7. DEFECTIVE OR NO TAIL LIGHTS	27. FAILED TO NEED WARNING SIGN	37. FIRE IN VEHICLE	37. TAILGATE (EXPLAIN IN NARRATIVE)
8. DEFECTIVE OR NO TURN SIGNAL LAMPS	28. FAILED TO PASS TO LEFT SAFELY	38. FLEWED OR EVADING POLICE	38. TURNED IMPROPERLY - CUT CORNER ON LEFT
9. DEFECTIVE OR NO TRAILER BRAKES	29. FAILED TO PASS TO RIGHT SAFELY	39. FOLLOWED TOO CLOSELY	39. TURNED IMPROPERLY - SHOT RIGHT
10. DEFECTIVE OR NO VEHICLE BRAKES	30. FAILED TO SIGNAL ON ONE-WAY ROAD	40. HAD BEEN DRIVING	40. TURNED IMPROPERLY - BRACKING LANE
11. DEFECTIVE STEERING MECHANISM	31. FAILED TO STOP AT PROPER PLACE	41. HAD BEEN DRIVING	41. TURNED WHEN UNSAFE
12. DEFECTIVE OR NO HORN	32. FAILED TO STOP FOR SCHOOL BUS	42. HAD BEEN DRIVING	42. UNDER INFLUENCE - ALCOHOL
13. DEFECTIVE TRAILER HITCH	33. FAILED TO STOP FOR TRAIN	43. IMPROPER START FROM PARKED POSITION	43. UNDER INFLUENCE - DRUGS
14. DISABLED IN TRAFFIC LANE	34. FAILED TO STOP FOR TRAIN	44. LOAD NOT SECURED	44. WEIGHT SIDE - APPROACHING OR IN INTERSECTION
15. OVERTAKING STOP AND GO SIGNAL	35. FAILED TO YIELD RIGHT - OPEN INTERSECTION	45. OVERTAKING INTO TRAFFIC LANE	45. WRONG WAY - NOT FACING
16. OVERTAKING STOP AND GO SIGNAL	36. FAILED TO YIELD RIGHT - STOP SIGN	46. OVERTAKING VEHICLE ON LOAD	46. WRONG WAY - ONE WAY ROAD
17. OVERTAKING STOP AND GO SIGNAL	37. FAILED TO YIELD RIGHT - STOP SIGN	47. OVERTAKING AND PASSING WITHOUT CLEARANCE	47. OTHER FACTOR (WRITE ON LINE BELOW)
18. OVERTAKING STOP AND GO SIGNAL	38. FAILED TO YIELD RIGHT - STOP SIGN	48. PARKED AND FUL TO SET BRAKES	
19. OVERTAKING STOP AND GO SIGNAL	39. FAILED TO YIELD RIGHT - STOP SIGN	49. PARKED IN TRAFFIC LANE	



**TEXAS DEPARTMENT OF PUBLIC SAFETY
HIGHWAY PATROL**

DATE : 11/15/04 INVESTIGATED BY : PETE ASPLUND

TIME : 11:50 AM MEASURED BY : PETE ASPLUND

LOCATION : VAN ZANDT COUNTY ROAD 4106

DRAWN BY : JASON MATURA

COUNTY : VAN ZANDT

DRIVER OF UNIT #1 [REDACTED]

KILLED : [REDACTED]

GAUGE

TREE

VZCR 4106

This affidavit is in compliance with Texas Rules of Criminal Evidence, Rule 902 (10b).

Case No. JP3871-04 in the matter of [REDACTED], deceased.

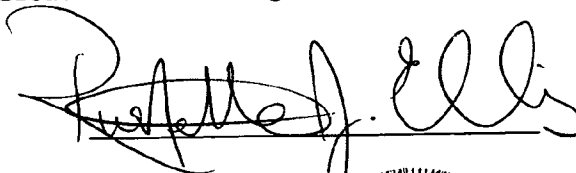
Office of the Medical Examiner
in the County of DALLAS
State of TEXAS

AFFIDAVIT

Before me, the undersigned authority, personally appeared RueNette J. Ellis, who, being duly sworn, deposed as follows:

My name is RueNette J. Ellis, I am over 21 years of age, of sound mind, capable of making this affidavit, and personally acquainted with the facts herein stated:

I am the Deputy Custodian of Records of the Dallas County Medical Examiner's Office. Attached hereto are 4 pages of records and xx photographs from the Dallas County Medical Examiner's Office. These said 4 pages of records and xx photographs are kept by the Dallas County Medical Examiner's Office in the regular course of business, and it was the regular course of business of the Dallas County Medical Examiner's Office for an employee or representative, or a doctor permitted to practice in the Dallas County Medical Examiner's Office, with personal knowledge of the act, event, condition, opinion or diagnosis, recorded to make the record or to transmit information thereof to be included in such record; and the record was made at or near the time or reasonably soon thereafter. The records attached hereto are the original or exact duplicates of the original.

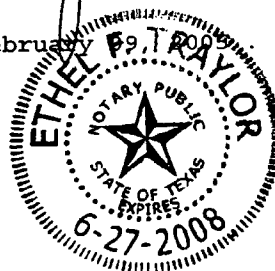


SWORN TO AND SUBSCRIBED

before me on February 19, 2008



Notary Public in and for Dallas County, Texas



My commission expires

(By statute, the original records are retained by the Dallas County Medical Examiner's Office. See Art. 49.25, Sec. 11, Vernon's Texas Statutes, CCP.)

To protect the privacy of individuals, NHTSA does not make medical records available to the public without authorization. For this reason, documents falling into this category have not been included in this complaint record.